26-12 ASSOCIATION FOR EDUCATION FAIRNESS V. MONTGOMERY COUNTY BOARD OF ED.

DECISION BELOW: 2026 WL 281028

LOWER COURT CASE NUMBER: 23-1068

QUESTION PRESENTED:

Whether a plaintiff alleging that a school district implemented facially-neutral admissions criteria for a racially discriminatory purpose must show that the criteria produced a disparate impact on the targeted racial group before a court may consider evidence of discriminatory intent.

GRANTED LIMITED TO THE FOLLOWING QUESTION:
WHETHER A PLAINTIFF CHALLENGING A FACIALLY NEUTRAL ADMISSIONS POLICY AS RACIALLY DISCRIMINATORY MUST ESTABLISH THAT THE TARGETED RACIAL GROUP SUFFERED AN AGGREGATE DISPARATE IMPACT RELATIVE TO ITS SHARE OF THE APPLICANT POOL.

CERT. GRANTED 10/19/2026